

abbot cannot seal any thing with it, and when it is in the abbot's hands, it is out of their keeping *ipso facto*; and if the statute should be (b) observed, every common seal shall be defeated upon a simple surmise, which cannot be tried. Note, reader, the words [118 b] of the said statute at Carlisle, anno 35 E. 1. (which is called *Statutum Religiosorum*) are, *Et insuper ordinavit dominus Rex et statuit, quod Abbates Cisterc' et Premonstraten' ordin' religiosorum, &c. de cætero habeant sigillum commune, et illud in custodia prioris monasterii seu domus, et quatuor de dignioribus et discretioribus ejusdem loci conventus sub privato sigillo abbatis ipsius loci custod' depo', &c. Et si forsan aliqua scripta obligationum, donationum, emptionum, venditionum, alienationum, seu aliorum quorumcunque, contractuum alio sigillo quam tali sigillo communi sicut præmittit' custodit' inveniant' a modo sigillat', pro nullo penitus habeantur omnique careant firmitate.* So the statute of 1 E. 6. c. 14. gives chauntries, &c. to the King, saving to the donor, &c. all such rents, services, &c. and the common law controuls it, and adjudges it void as to services, and the donor shall have the rent, as a rentseck, distrainable of common right, for it would be against common right and reason that the (c) King should hold of any, or do service to any of his subjects, 14 Eliz. Dyer 313. and so it was adjudged Mich. 16 & 17 Eliz. in Com' Banco in (d) *Strowd's case*. So if any Act of Parliament gives to any to hold, or to have conusans of all manner of pleas arising before him within his manor of D., yet he shall hold no plea, to which he himself is party; for, as hath been said, *iniqum est aliquem sue rei esse judicem*. 5. If he should forfeit 5l. for one month by the first clause, and should be punished for practising at any time by the second clause, two absurdities should follow,—1. That one should be punished not only twice but many times for one and the same offence. And the divine saith, *Quod (e) Deus non agit bis in idipsum*; and the law saith, (f) *Nemo debet bis puniri pro uno delicto*. 2. It would be absurd, by the first clause, to punish practising for a month, and not for a lesser time, and by the second to punish practising not only for a day, but at any time, so he shall be punished by the first branch for one month by the forfeit of 5l. and by the second by fine and imprisonment, without limitation for every time of the month in which he practises physic. And all these reasons were proved by two grounds, or maxims in law; 1. (g) *Generalis clausula non porrigitur ad ea que specialiter sunt comprehensa*: and the case between Carter and (a) Ringstead, Hil. 34 Eliz. Rot. 120. in Communi Banco, was cited to this purpose, where the case in effect was, that A. seised of the manor of Staple, in Odiham, in the county of Southampton in fee, and also of other lands in Odiham aforesaid in fee, suffered a common recovery of all, and declared the use by indenture, that the recoverer should stand seised of all the lands and tenements in Odiham, to the use of A. and his wife, and to the heirs of his body begotten; and further, that the recoveror [119 a] should stand seised to the use of him, and to the heirs of his body, and died, and the wife survived, and entered into the said manor by force of the said general words: but it was adjudged, that they did not extend to the said manor which was specially named: and if it be so in a deed, *a fortiori*, it shall be so in an Act of Parliament, which (as a will) is to be expounded according to the intention of the makers. 2. (b) *Verba posteriora propter certitudinem addita ad priora quæ certitudine indigent sunt referenda*. 6 E. (c) 3. 12 a. b. Sir Adam de Clydrow, Knight, brought a *præcipe quod reddat* against John de Clydrow; and the writ was, *quod juste, &c. reddat manerium de Wicomb et duas carucatus terre cum pertinentiis in Clydrow*, in that case the town of Clydrow shall not relate to the manor,

(b) 2 Brownl. 265. 2 Inst. 587.

(c) Dy. 313. pl. 91. 1 Co. 47 a. Dav. 2 a. Co. Lit. 1 b. Cro. Car. 82, 83. 2 Roll. Rep. 246, 247. 1 Jones 234. Lit. Rep. 43.

(d) 1 And. 45. 3 Leon. 58. 4 Leon. 40, 41.

(e) 4 Co. 43 a.

(f) 2 Vent. 170. 4 Co. 43 a. 5 Co. 61 a. 11 Co. 59 b. 1 Roll. Rep. 95. Cawly 78. Noy 82. Bridgm. 122. Cro. Jac. 481. Wing. Max. 695.

(g) *Postea* 154 b. Raymond 330. Hawkes's Max. 12. Styles 391.

(a) Cro. El. 208. 2 Leon. 47. Owen 84, 85. 1 And. 245. 6 Co. 64 b. 3 Bulstr. 66. 185. 2 Roll. Rep. 276. Winch. 92. Lane 69. Lit. Rep. 64. 67. 289. Styles 391.

(b) Wing. Max. 67. Lit. Rep. 66.

(c) Lit. Rep. 66. Wing. Max. 67. Styles 78.